

23STCV21374 23STCV21374

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-28

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Case Number: 23STCV21374 Hearing Date: September 28, 2026 Dept: 617

Dept.

617

Date:

9-28-26

Case

#: 23STCV21374

Trial

Date: 10-12-26

BIFURCATE

MOVING

PARTY: Defendants, SBDTLA 1, LLC, SBDTLA 2,

LLC,

Laguna Point Properties, LLC, and FPI Management, Inc.

RESPONDING

PARTY: Unopposed/Plaintiffs, Monica Munevar and Jose Cosme

RELIEF

REQUESTED

Motion

to Bifurcate

SUMMARY OF ACTION

Plaintiff

Monica Munevar sued Defendants SBDTLA 1, LLC, SBDTLA 2, LLC, Laguna Point Properties, LLC, and FPI Management, Inc. for negligence after an alleged slip and fall on their property. Plaintiff Jose Cosme later filed his own complaint against SBDTLA 1, SBDTLA 2, and FPI Management for a separate slip and fall incident on the same property. The cases were consolidated on February 14, 2025.

RULING: Denied.

Defendants

SBDTLA 1, SBDTLA 2, and Laguna Point Properties move to bifurcate trial on the issues of liability, damages, and punitive damages. Defendant FPI Management joins their motion. Defendants argue that bifurcation of the issue of punitive damages is mandatory and that separate trials on liability and damages promotes judicial economy and minimizes prejudice. Plaintiffs do not oppose the motion. As an initial matter, bifurcation of the issue of punitive damages is not warranted as neither of Plaintiffs' complaints seek recovery of punitive damages. Thus, the sole question is whether the issues of liability and damages should be bifurcated. The Court concludes that they should not, and Defendants' motion is denied

Code of

Civil Procedure section 598 states in part: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." Code of

Civil Procedure, section 1048, subdivision (b), additionally adds: "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute

of this state or of the United States.”

The

Court declines to bifurcate the issues of liability and damages. The damages issues do not appear to be complex in such a way that having liability tried first is more efficient. Neither is there any indication that Defendants would be prejudiced by having damages and liability evidence presented at the same time. The motion to bifurcate is therefore denied.

Defendants to give notice.